



U.S. Department
of Transportation

Research and
Special Programs
Administration

AUG 10 1999

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 12326

EXPIRATION DATE: **September 30, 1999**

1. GRANTEE: Alexander Chemical Corporation
LaPorte, IN
2. PURPOSE AND LIMITATION:
 - a. This emergency exemption authorizes the one-time transportation in commerce of a DOT Specification 3A cylinder containing Sulfur dioxide. The cylinder developed a leak in the valve and is therefore equipped with a Chlorine Institute "A" Kit to prevent leakage during transportation. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.24(b) and 173.34(d) in that the cylinder's valve is leaking.
5. BASIS: This emergency exemption is based on the application of Alexander Chemical Corporation dated August 6, 1999, submitted in accordance with § 107.117 and the determination that it is necessary for the protection of life and property.

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6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Sulfur dioxide, liquefied	2.3 (Hazard Zone C)	UN1079	N/A

7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a DOT Specification 3A cylinder which has a leak in the valve. The cylinder is equipped with a Chlorine Institute "A" Kit manufactured by the Indian Springs Manufacturing Company, Baldwinsville, NY.

b. OPERATIONAL CONTROLS - The cylinder must be transported by private carrier accompanied by trained emergency personnel.

8. SPECIAL PROVISIONS: The cylinder will be transported from Indianapolis, Indiana to Kingsbury, Indiana, a distance of approximately 146 miles.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard the motor vehicle used to transport the package covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

AUG 10 1999
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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